



US0D1091334S

(12) **United States Design Patent** (10) **Patent No.:** **US D1,091,334 S**
Nowak (45) **Date of Patent:** **** Sep. 2, 2025**

(54) **TRAY WITH DIVIDER FEATURES**

(71) Applicant: **Graphic Packaging International, LLC**, Atlanta, GA (US)

(72) Inventor: **Lee Nowak**, Leicestershire (GB)

(**) Term: **15 Years**

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(51) **LOC (15) Cl.** **09-03**

(52) **U.S. Cl.**
USPC **D9/760**

(58) **Field of Classification Search**
USPC D9/414, 431-432, 433, 456, 737, 756,
D9/759-760

(Continued)

(56) **References Cited**

U.S. PATENT DOCUMENTS

662,969 A 12/1900 Roth
978,569 A 12/1910 Elkin

(Continued)

FOREIGN PATENT DOCUMENTS

CA 2 586 472 5/2006
DE 75 23 198 11/1975

(Continued)

OTHER PUBLICATIONS

Paperboard Kraft Food Trays 4 Corner Pop up Food Tray, posted Nov. 15, 2021 [online], [retrieved Jan. 24, 2025]. Retrieved from internet, <https://www.amazon.com/Paperboard-Disposable-Supplies-Cardboard-Stadiums/dp/B09LV83YGM/> (Year: 2021).*

(Continued)

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(57) **CLAIM**

The ornamental design for a tray with divider features, as shown and described.

DESCRIPTION

FIG. 1 is a perspective view of a first exemplary embodiment of a tray with divider features showing my new design. FIG. 2 is a left elevation view of the tray with divider features of FIG. 1, the right elevation view is a mirror image. FIG. 3 is a front elevation view of the tray with divider features of FIG. 1, the rear elevation view is a mirror image. FIG. 4 is a top plan view of the tray with divider features of FIG. 1.

FIG. 5 is a bottom plan view of the tray with divider features of FIG. 1.

FIG. 6 is a plan view of the tray with divider features of FIG. 1 shown in an unfolded configuration.

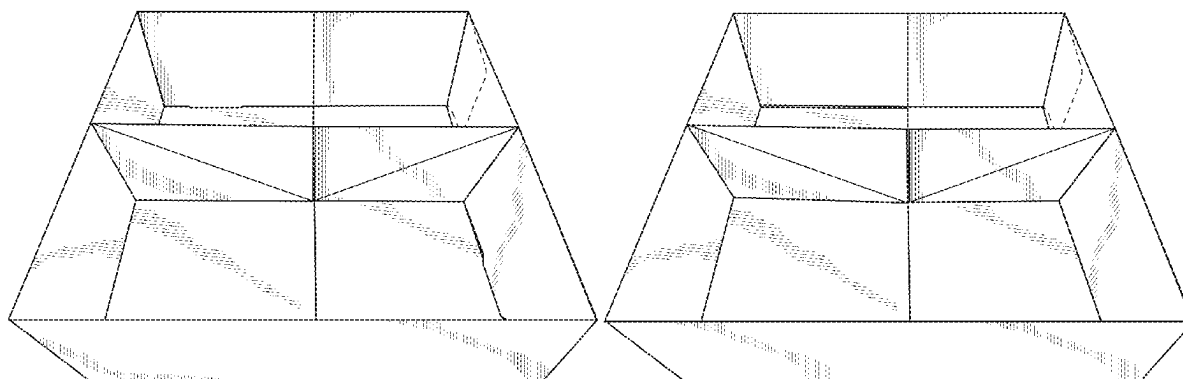
FIG. 7 is a perspective view of a second exemplary embodiment of a tray with divider features showing my new design. FIG. 8 is a left elevation view of the tray with divider features of FIG. 7, the right elevation view is a mirror image. FIG. 9 is a front elevation view of the tray with divider features of FIG. 7, the rear elevation view is a mirror image. FIG. 10 is a top plan view of the tray with divider features of FIG. 7.

FIG. 11 is a bottom plan view of the tray with divider features of FIG. 7; and,

FIG. 12 is a plan view of the tray with divider features of FIG. 7 shown in an unfolded configuration.

The broken lines indicate portions of the tray with divider features that form no part of the claimed design.

1 Claim, 12 Drawing Sheets



(58) **Field of Classification Search**

CPC B65D 5/00; B65D 5/20

See application file for complete search history.

(56) **References Cited**

U.S. PATENT DOCUMENTS

1,048,577 A 12/1912 Pardoe
 1,516,090 A 11/1924 Gary et al.
 1,651,848 A 12/1927 Stevens
 1,667,376 A 4/1928 Fehrenkamp
 1,814,561 A 7/1931 Krumm
 1,824,862 A 9/1931 Young
 2,054,596 A 9/1936 Ford
 2,091,126 A 8/1937 Speer
 2,100,888 A 11/1937 Vine
 2,107,946 A 2/1938 Inman
 2,132,966 A 10/1938 O'Brien
 2,180,808 A 11/1939 Jacobstein et al.
 2,194,220 A 3/1940 Elder
 2,312,595 A 3/1943 Smith
 2,337,654 A 12/1943 Goodyear
 2,345,000 A 3/1944 Newsom
 2,363,861 A 11/1944 Goodyear
 2,565,146 A 8/1951 Okon
 2,569,733 A 10/1951 Ringler
 2,583,915 A 1/1952 Whitley
 2,710,133 A 6/1955 Repking
 2,769,971 A 11/1956 Bashe
 2,790,589 A * 4/1957 Moore B65D 5/38
 229/162.1
 2,804,252 A 8/1957 Nute
 2,833,458 A 5/1958 Toensmeier
 2,844,294 A 7/1958 Williams
 2,852,177 A 9/1958 Frasch
 2,862,612 A 12/1958 Brown
 2,877,736 A 3/1959 Simmons
 2,894,672 A 7/1959 Bamburg
 2,924,371 A 2/1960 Frankenstein
 2,924,372 A 2/1960 Kirkeby
 2,955,733 A 10/1960 Wilson
 2,967,610 A 1/1961 Ebert
 3,003,584 A 10/1961 Coe
 3,071,882 A 1/1963 Eisman et al.
 3,099,381 A 7/1963 Meyers
 3,107,039 A 10/1963 Painter
 3,142,430 A 7/1964 Meyers
 3,146,933 A 9/1964 Moore
 3,181,770 A 5/1965 Coe
 3,189,247 A 6/1965 Wischusen
 3,204,814 A 9/1965 Mahon
 3,205,603 A 9/1965 Brumley
 3,240,419 A 3/1966 Spiering et al.
 3,297,228 A 1/1967 Contratto
 3,324,998 A 6/1967 Farquhar
 3,366,303 A 1/1968 Kaspar
 3,499,595 A 3/1970 Brooks
 3,515,331 A 6/1970 Guthrie
 3,637,130 A 1/1972 Farquhar
 3,692,228 A 9/1972 Spiege
 3,721,380 A 3/1973 Meyers
 3,809,310 A 5/1974 VanderLugt, Jr.
 3,876,131 A 4/1975 Tolaas
 3,876,132 A * 4/1975 Kuchenbecker ... B65D 5/48022
 229/120.17
 3,899,119 A 8/1975 Roccoforte
 3,907,195 A 9/1975 Struble
 3,958,744 A 5/1976 Herglotz
 4,004,691 A 1/1977 Wihksne
 4,008,849 A 2/1977 Baber
 4,039,120 A 8/1977 Herzog
 4,058,249 A * 11/1977 Buck B65D 5/22
 229/179
 4,076,168 A 2/1978 Ferri
 4,088,262 A 5/1978 Kuehlhorn
 4,105,155 A 8/1978 Forbes, Jr.
 4,126,261 A 11/1978 Cook

4,185,764 A 1/1980 Cote
 4,228,945 A 10/1980 Wysocki
 4,250,992 A 2/1981 Gilbert
 4,252,264 A 2/1981 Herbst et al.
 4,278,197 A 7/1981 Scheinbaum et al.
 4,313,542 A 2/1982 Roberts et al.
 4,472,896 A 9/1984 Brauner et al.
 4,477,014 A 10/1984 Brandenburger
 4,492,333 A 1/1985 Roberts
 4,530,459 A 7/1985 Maroszek
 4,562,916 A 1/1986 Mode
 4,572,423 A 2/1986 Spencer
 4,592,914 A 6/1986 Kuchenbecker
 D287,464 S 12/1986 Mode
 4,630,733 A 12/1986 Fear
 4,684,023 A 8/1987 Cortopassi
 4,705,173 A 11/1987 Forbes, Jr.
 4,711,389 A 12/1987 Alba et al.
 4,714,190 A 12/1987 Morrocco
 4,757,937 A 7/1988 Maio et al.
 4,775,771 A 10/1988 Pawlowski et al.
 4,798,323 A 1/1989 Platt
 4,804,133 A 2/1989 Kiyokane
 4,804,137 A 2/1989 Harby
 4,815,609 A 3/1989 Kiedaisch
 4,865,921 A 9/1989 Hollenberg et al.
 4,890,439 A 1/1990 Smart
 4,895,259 A 1/1990 Paley
 4,901,457 A 2/1990 Chandler
 4,915,235 A 4/1990 Roosa
 4,919,785 A 4/1990 Willey et al.
 4,936,935 A 6/1990 Beckett
 4,944,451 A 7/1990 Forbes, Jr.
 4,955,528 A 9/1990 Schluckebier
 4,963,424 A 10/1990 Beckett
 4,993,625 A 2/1991 Stease et al.
 5,034,234 A 7/1991 Andreas et al.
 5,039,364 A 8/1991 Beckett et al.
 5,047,710 A 9/1991 Mahoney
 D320,743 S 10/1991 Alexander et al.
 5,058,803 A 10/1991 Gulliver
 5,071,062 A 12/1991 Bradley et al.
 5,078,273 A 1/1992 Kuchenbecker
 5,093,364 A 3/1992 Richards
 5,096,723 A 3/1992 Turpin
 5,117,078 A 5/1992 Beckett
 RE33,979 E 6/1992 Cortopassi
 5,118,033 A 6/1992 Kula
 5,175,404 A 12/1992 Andreas et al.
 5,205,474 A 4/1993 Stuart et al.
 5,213,902 A 5/1993 Beckett
 5,221,419 A 6/1993 Beckett
 5,260,537 A 11/1993 Beckett
 5,266,386 A 11/1993 Beckett
 5,266,763 A 11/1993 Colombo
 D342,446 S 12/1993 Parker et al.
 5,300,748 A 4/1994 Colombo
 D346,552 S 5/1994 Krupa
 5,328,089 A 7/1994 Forbes, Jr.
 RE34,683 E 8/1994 Maynard et al.
 5,338,921 A 8/1994 Maheux et al.
 5,340,436 A 8/1994 Beckett
 5,354,973 A 10/1994 Beckett
 5,358,176 A 10/1994 Rigby
 D353,091 S 12/1994 Mumford
 5,402,889 A 4/1995 Hermann et al.
 5,402,931 A 4/1995 Gulliver et al.
 5,410,135 A 4/1995 Pollart et al.
 5,424,517 A 6/1995 Habeger, Jr. et al.
 D363,192 S * 10/1995 Reeves D7/553.3
 5,458,283 A 10/1995 Southwell et al.
 5,464,150 A 11/1995 Porres Sanchez et al.
 D365,272 S 12/1995 Krupa et al.
 5,484,100 A 1/1996 Rigby
 5,503,324 A 4/1996 Bacchetti et al.
 5,510,132 A 4/1996 Gallo, Jr.
 5,519,195 A 5/1996 Keefer et al.
 D370,412 S 6/1996 Rohrer
 D372,968 S 8/1996 White

US D1,091,334 S

Page 3

(56)

References Cited

U.S. PATENT DOCUMENTS

D373,081 S	8/1996	Bridger	6,866,189 B2	3/2005	Nelson	
5,542,536 A	8/1996	Sutherland	6,892,932 B2	5/2005	Correll	
5,582,345 A	12/1996	Lankhuijzen	6,966,483 B2	11/2005	Manninen	
5,585,027 A	12/1996	Young	D512,836 S *	12/2005	Marnell, II	D3/313
5,626,283 A	5/1997	Mellon	6,988,614 B2	1/2006	Hemmingway et al.	
5,628,921 A	5/1997	Beckett	7,004,314 B2	2/2006	Pucillo et al.	
5,630,544 A	5/1997	Shane	7,007,837 B2	3/2006	Correll	
5,657,925 A	8/1997	Norris	7,019,271 B2	3/2006	Wnek et al.	
5,662,265 A	9/1997	Jensen	D532,690 S	11/2006	Oliveira	
5,672,407 A	9/1997	Beckett	7,140,532 B2	11/2006	Holt et al.	
5,688,427 A	11/1997	Gallo, Jr.	7,159,760 B2	1/2007	Pluck et al.	
5,690,273 A	11/1997	Jensen	7,182,242 B2	2/2007	Cai	
5,697,549 A	12/1997	Yocum	7,232,055 B1	6/2007	Lim	
5,704,483 A	1/1998	Groh	7,273,162 B2	9/2007	Baker	
5,707,004 A	1/1998	Cai	D555,513 S	11/2007	Baker	
D390,106 S *	2/1998	Dauphin	7,293,695 B2	11/2007	Stier	
5,720,429 A	2/1998	Cordle	7,323,699 B2	1/2008	Hopkins et al.	
5,726,426 A	3/1998	Davis et al.	7,364,064 B2	4/2008	Kanamori et al.	
5,735,454 A	4/1998	Jensen	7,365,292 B2	4/2008	Cole et al.	
5,759,422 A	6/1998	Schmelzer et al.	7,414,230 B2	8/2008	Fitzwater	
5,788,081 A	8/1998	Bates	7,473,875 B2	1/2009	Fitzwater	
5,800,724 A	9/1998	Habeger et al.	7,484,653 B2	2/2009	Hirtado et al.	
5,826,781 A	10/1998	Jensen	7,514,659 B2	4/2009	Lafferty	
D405,610 S *	2/1999	Rasmussen	7,562,808 B1	7/2009	Philips	
5,871,145 A	2/1999	Hermann et al.	7,565,997 B1	7/2009	Lim	
5,875,957 A	3/1999	Yocum	7,617,969 B2	11/2009	Oliveira	
5,890,648 A	4/1999	Cai	7,621,439 B2	11/2009	McClure	
5,938,110 A	8/1999	Bernstein	7,652,233 B2	1/2010	Keefe	
6,027,018 A	2/2000	Yocum	7,667,167 B2	2/2010	Fitzwater	
6,041,997 A	3/2000	Jensen	D622,139 S	8/2010	Marcott	
6,050,482 A	4/2000	Cai	D631,743 S	2/2011	Hubbard, Jr.	
6,053,403 A	4/2000	Cai	7,893,389 B2	2/2011	Fitzwater	
6,063,415 A	5/2000	Walters	7,938,257 B2	5/2011	Kohler	
6,068,181 A	5/2000	Cai	7,938,267 B2	5/2011	Cross	
6,095,408 A	8/2000	Nguyen	7,982,167 B2	7/2011	Fitzwater	
6,102,568 A	8/2000	Davis	8,006,893 B2	8/2011	Burke et al.	
6,114,679 A	9/2000	Lai	8,056,799 B2	11/2011	Burke et al.	
6,119,930 A	9/2000	Lunstra et al.	8,309,896 B2	11/2012	Fitzwater	
6,150,646 A	11/2000	Lai et al.	8,474,641 B2	7/2013	Hays	
6,182,890 B1	2/2001	Sattler et al.	8,523,049 B2	9/2013	Fitzwater	
6,204,492 B1	3/2001	Zeng et al.	D695,608 S	12/2013	Pusta	
6,216,946 B1	4/2001	Cai	8,814,033 B2	8/2014	House	
6,251,451 B1	6/2001	Zeng	9,078,296 B2 *	7/2015	Fitzwater	B65D 81/3453
6,283,364 B1	9/2001	Gray, Sr.	9,132,936 B2	9/2015	Kohler	
D448,990 S	10/2001	Sorensen et al.	D752,429 S	3/2016	Mayer	
6,349,874 B1	2/2002	Hill	9,278,774 B2	3/2016	Fairchild, Jr.	
6,386,443 B1	5/2002	Szczerbinski	D753,994 S	4/2016	Pantelleria	
D458,127 S	6/2002	de Groote	9,346,234 B2	5/2016	Hajek et al.	
6,401,927 B1	6/2002	Sorensen et al.	9,376,231 B2	6/2016	Pinkstone	
D460,691 S	7/2002	Morris et al.	D762,468 S	8/2016	Pantelleria	
6,414,290 B1	7/2002	Cole et al.	D769,114 S	10/2016	Montemayor	
6,419,153 B1	7/2002	Maita	9,499,296 B2	11/2016	Mills et al.	
6,433,322 B2	8/2002	Zeng et al.	9,540,135 B2	1/2017	Robertson	
6,440,050 B1	8/2002	Capparelli	D842,095 S	3/2019	Hajek	
6,455,827 B2	9/2002	Zeng	11,059,621 B2	7/2021	Nowak et al.	
6,471,119 B2	10/2002	Cai	D927,320 S *	8/2021	Dwork	D9/756
D467,499 S	12/2002	Garza et al.	D955,875 S *	6/2022	Sill	D9/431
D467,797 S	12/2002	Sullivan	D992,408 S *	7/2023	Chen	D9/414
6,527,123 B1	3/2003	Ausaf	D1,007,302 S *	12/2023	Chen	D9/433
D473,787 S	4/2003	Jones, Jr. et al.	2002/0108504 A1	8/2002	Cai	
6,552,315 B2	4/2003	Zeng et al.	2003/0047595 A1	3/2003	Bill-Moore	
6,561,414 B1	5/2003	Cai	2003/0080120 A1	5/2003	Whitmore et al.	
6,568,586 B1	5/2003	VanEsley	2003/0106926 A1	6/2003	Beatificato et al.	
6,634,547 B2	10/2003	Willis	2003/0206997 A1	11/2003	Winkelman et al.	
D484,043 S	12/2003	Hwang et al.	2004/0074953 A1	4/2004	Yocum	
6,677,563 B2	1/2004	Lai	2004/0089656 A1	5/2004	Watkins	
6,681,983 B2	1/2004	Bill-Moore	2004/0101605 A1	5/2004	Sigel	
6,683,289 B2	1/2004	Whitmore et al.	2004/0159698 A1	8/2004	Tallevi et al.	
6,695,202 B2	2/2004	Miess	2005/0045708 A1	3/2005	Bodary et al.	
6,705,514 B2	3/2004	Pellati	2005/0284865 A1	12/2005	Fogle et al.	
6,717,121 B2	4/2004	Zeng et al.	2006/0016863 A1	1/2006	Holt et al.	
6,719,190 B2	4/2004	Yocum	2006/0042989 A1	3/2006	Suter	
6,744,028 B2	6/2004	Chisholm et al.	2006/0049190 A1	3/2006	Middleton	
6,765,182 B2	7/2004	Cole et al.	2006/0096978 A1	5/2006	Lafferty et al.	
6,851,603 B1	2/2005	Carlson et al.	2006/0113300 A1	6/2006	Wnek et al.	
			2006/0186044 A1	8/2006	Baker	
			2006/0278521 A1	12/2006	Stowell	
			2007/0074993 A1	4/2007	Philips	
			2007/0131742 A1	6/2007	Fitzwater	

(56)

References Cited**U.S. PATENT DOCUMENTS**

2007/0131743	A1	6/2007	Fitzwater	
2007/0131744	A1	6/2007	Fitzwater	
2007/0131745	A1	6/2007	Fitzwater	
2007/0138247	A1	6/2007	Fitzwater	
2007/0251942	A1	11/2007	Cole et al.	
2007/0251943	A1	11/2007	Wnek et al.	
2007/0267467	A1	11/2007	Burke et al.	
2007/0267468	A1	11/2007	Burke et al.	
2007/0275130	A1	11/2007	Cole et al.	
2008/0000897	A1	1/2008	Robbins et al.	
2008/0047958	A1	2/2008	Cole et al.	
2008/0078759	A1	4/2008	Wnek et al.	
2008/0081095	A1	4/2008	Cole et al.	
2008/0156859	A1 *	7/2008	Glasgow	B65D 5/6626 229/120.18
2008/0179385	A1	7/2008	Nikolai et al.	
2008/0290149	A1	11/2008	Sweet	
2008/0308614	A1	12/2008	Fitzwater	
2009/0039077	A1	2/2009	Fitzwater	
2009/0090708	A1	4/2009	Requena et al.	
2009/0200364	A1	8/2009	Oliveira	
2010/0051675	A1	3/2010	Sweet	
2010/0055260	A1	3/2010	Sweet	
2010/0102110	A1	4/2010	Learn	
2010/0243510	A1	9/2010	Cross	
2020/0039680	A1 *	2/2020	Nowak	B65D 5/4266
2023/0365293	A1 *	11/2023	Nowak	B65D 5/28
2024/0067389	A1 *	2/2024	Nowak	B65D 5/30
2024/0067427	A1 *	2/2024	Kavanagh	B65D 71/004

FOREIGN PATENT DOCUMENTS

DE	296 13 331	10/1996
DE	203 00 817	4/2003
EP	0 270 838	6/1988
EP	1 452 458	9/2004
EP	1 481 922	12/2004
EP	3 871 989 A1	9/2021
FR	2 516 481	5/1983
FR	2 665 882	2/1992
FR	2 687 384	8/1993
FR	2 867 346	9/2005
GB	1049168	11/1966
GB	1189877	4/1970

GB	2 365 000	2/2002
GB	6280237	* 5/2023
GB	6322014	* 11/2023
GB	6322015	* 11/2023
JP	4-253670	9/1992
JP	08-207174	8/1996
JP	10-101056	4/1998
JP	10-203524 A	8/1998
JP	03095906	6/2003
JP	2004-059022	2/2004
JP	2004 224402	8/2004
JP	0 3106317	10/2004
JP	2005-170517	6/2005
JP	2007-168832	7/2007
JP	2012-245989	12/2012
KR	20-0253232	11/2001
KR	10-2005-0090313	9/2005
WO	WO 91/05448	4/1991
WO	WO 94/05563	3/1994
WO	WO 96/06021	2/1996
WO	WO 02/40374	5/2002
WO	WO 03/066435	8/2003
WO	WO 2005/077783	8/2005
WO	WO 2005/085091	9/2005
WO	WO 2006/052326	5/2006
WO	WO 2006/076501	7/2006
WO	WO 2007/067705	7/2007
WO	WO 2007/127235	11/2007
WO	WO 2007/133659	11/2007
WO	WO 2007/136839	11/2007
WO	WO 2008/137525	11/2008
WO	WO 2008/137528	11/2008
WO	WO 2009/023286	11/2009

OTHER PUBLICATIONS

Hot Dog betaboard Box used for serving hot dog burgers and chips.
[online] Published May 29, 2016. Retrieved Aug. 27, 2018 from
URL: <http://www.packagingbiodegradable.com.au/home/1033-hot-dog-clam-ec-brown--400-pcs.html>.

International Search Report and Written Opinion for PCT/US2023/021976 dated Sep. 1, 2023.

Translation of FR 2502120 (Date Sep. 24, 1982).

Translation of JP 10203524 (Date Aug. 1998).

* cited by examiner

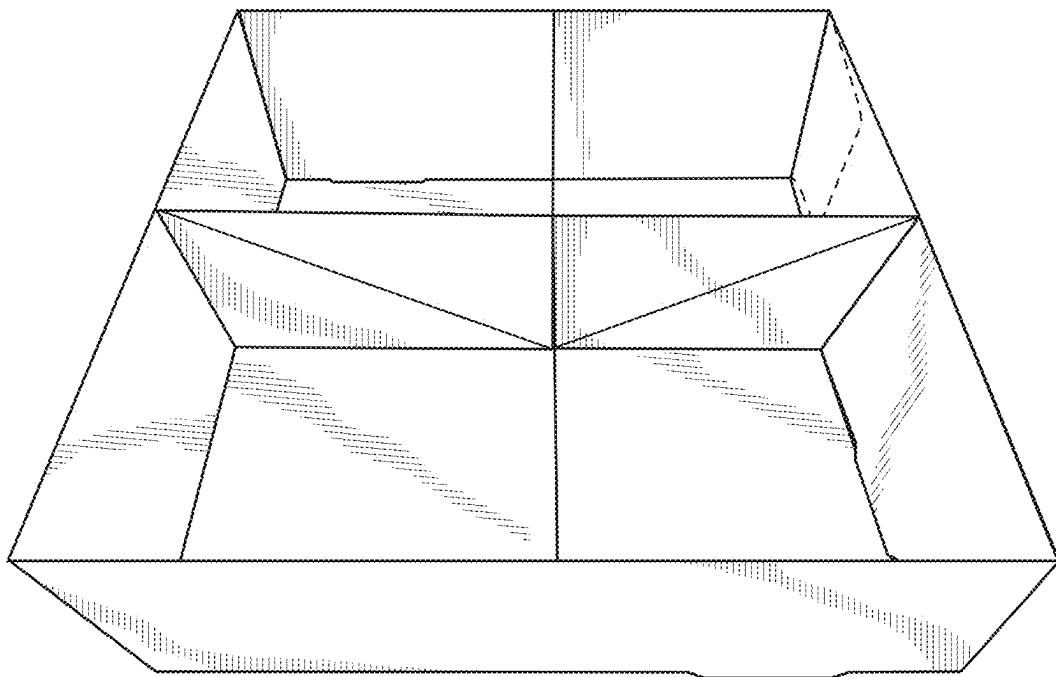


FIG. 1

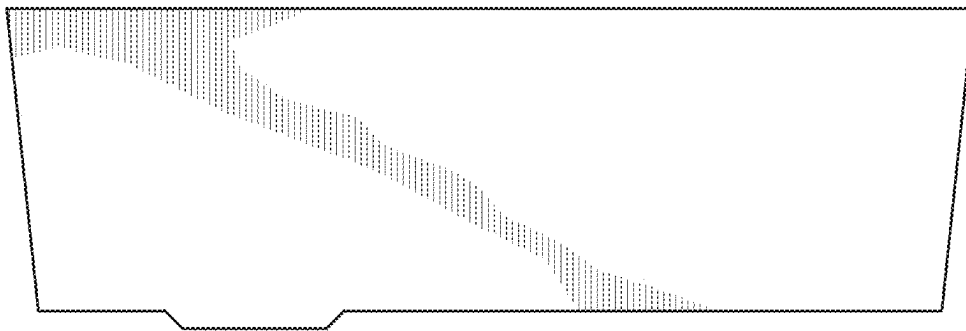


FIG. 2

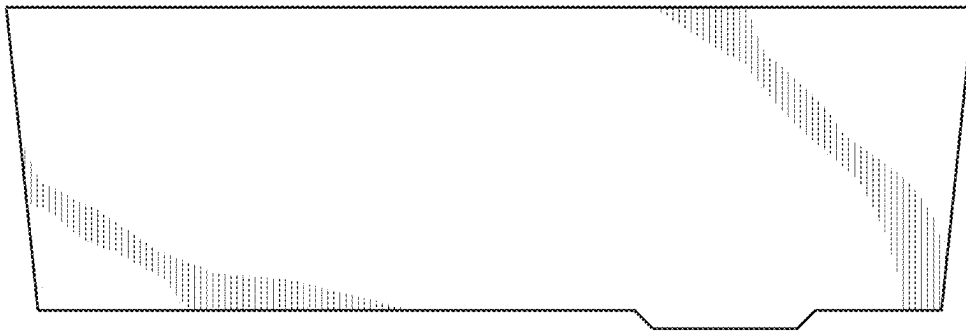


FIG. 3

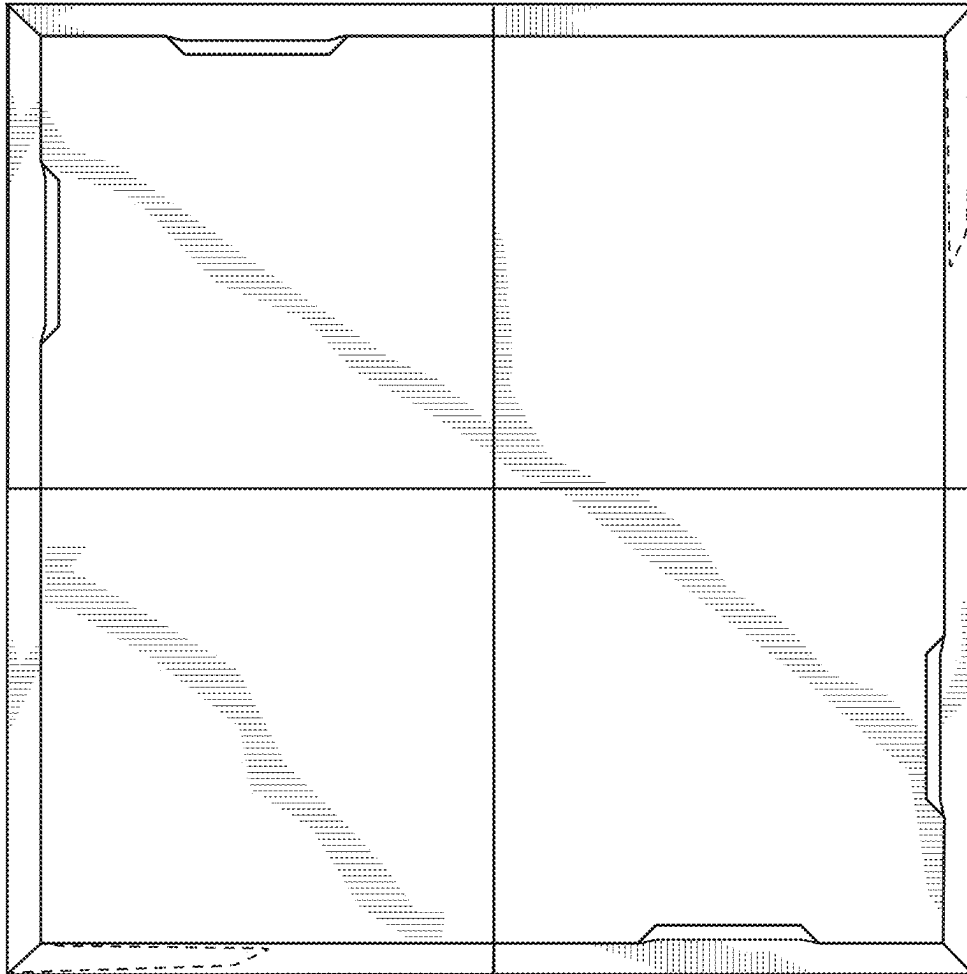


FIG. 4

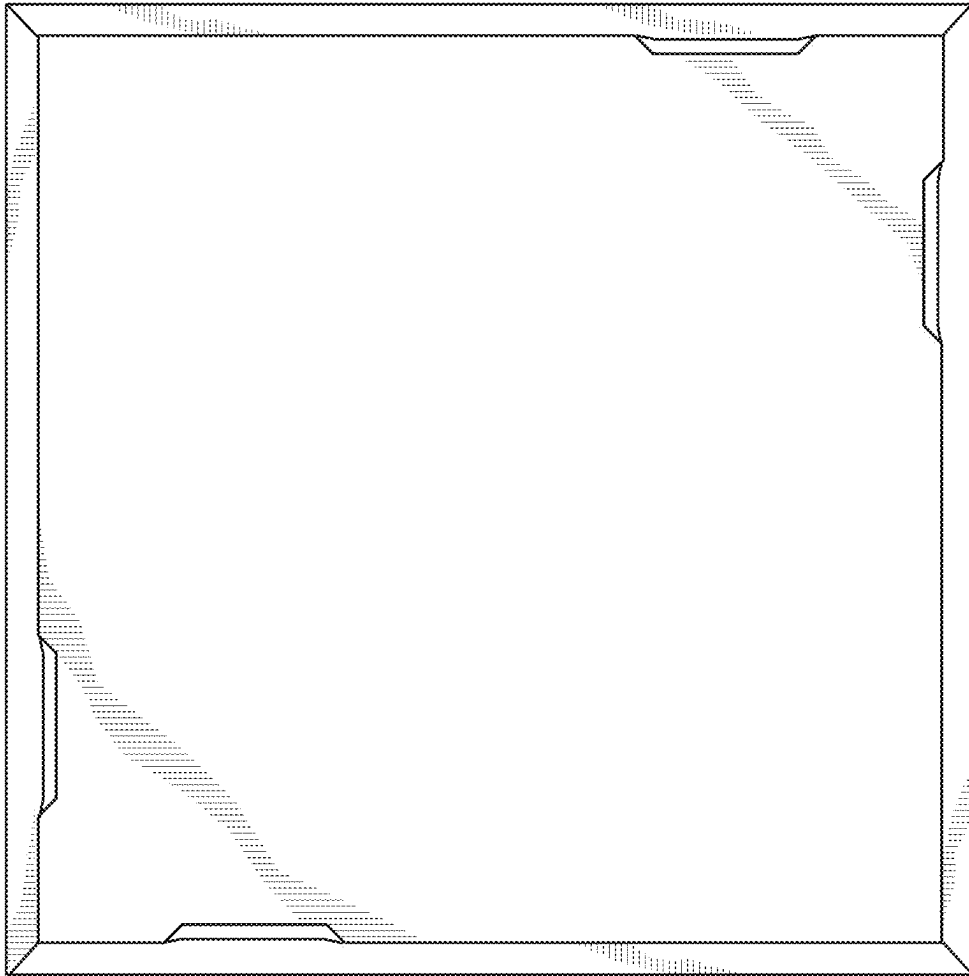


FIG. 5

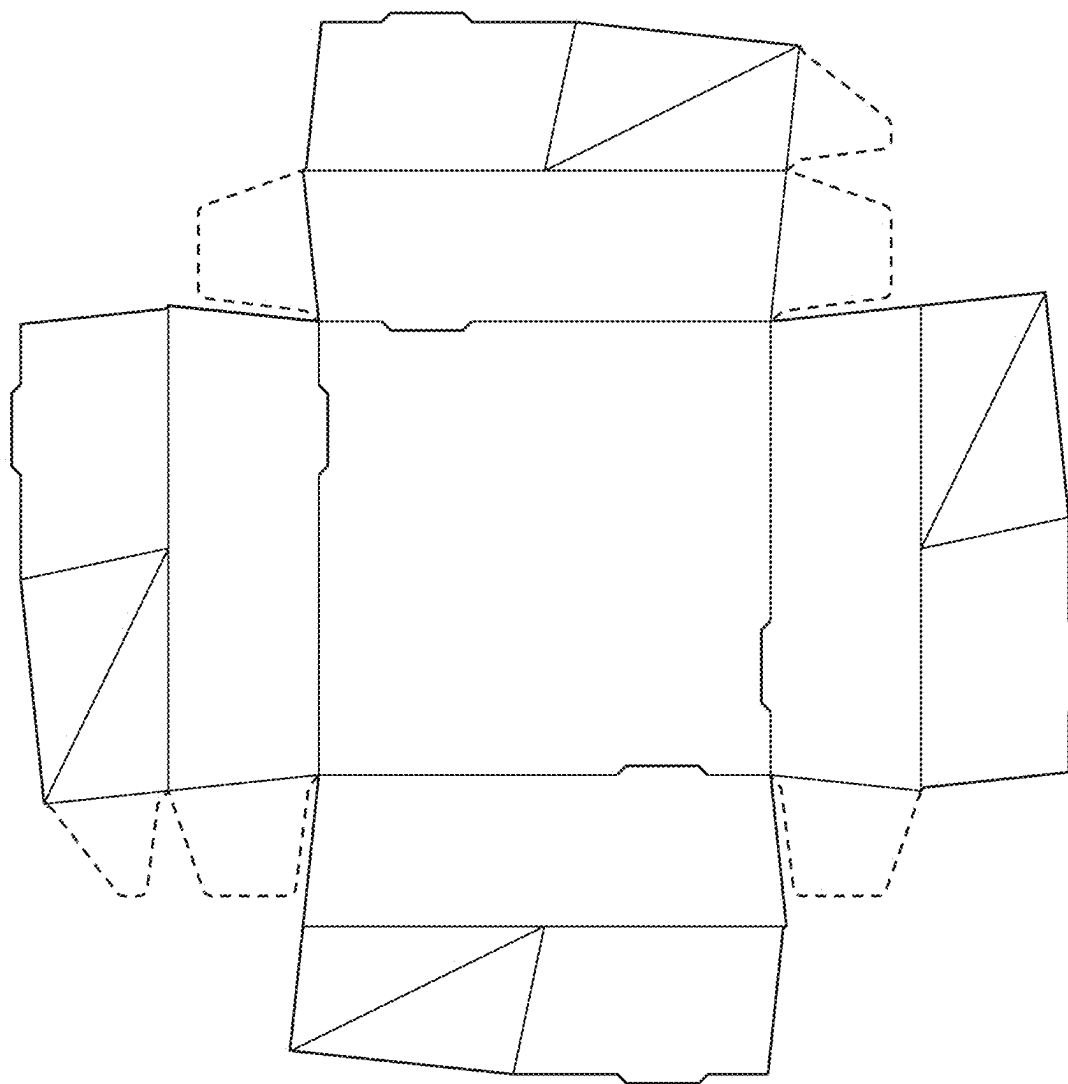


FIG. 6

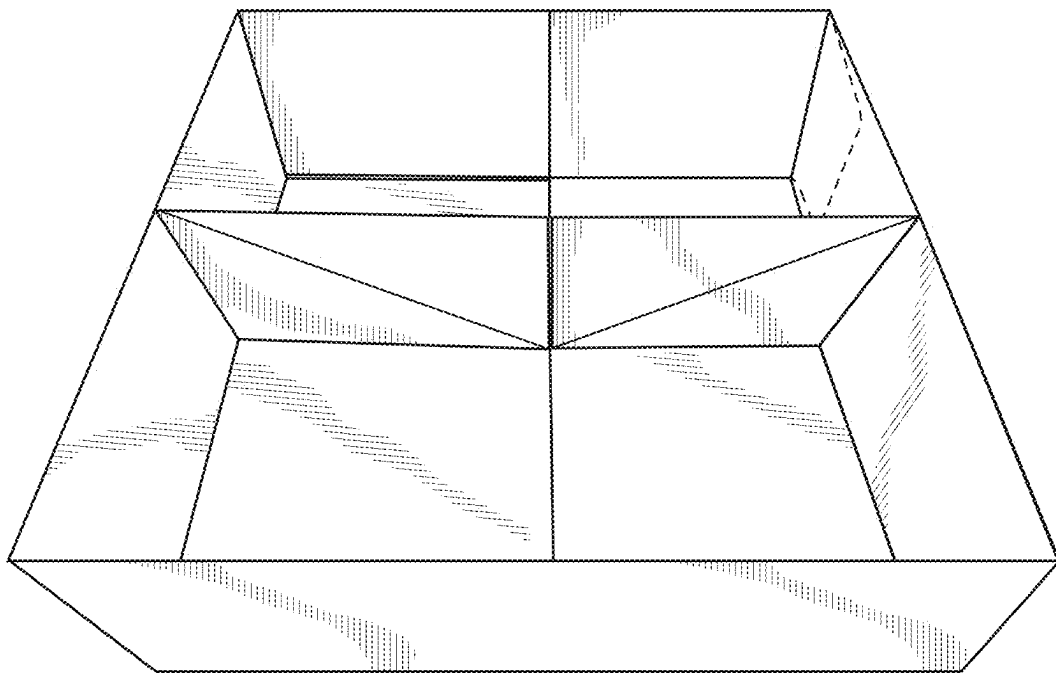


FIG. 7

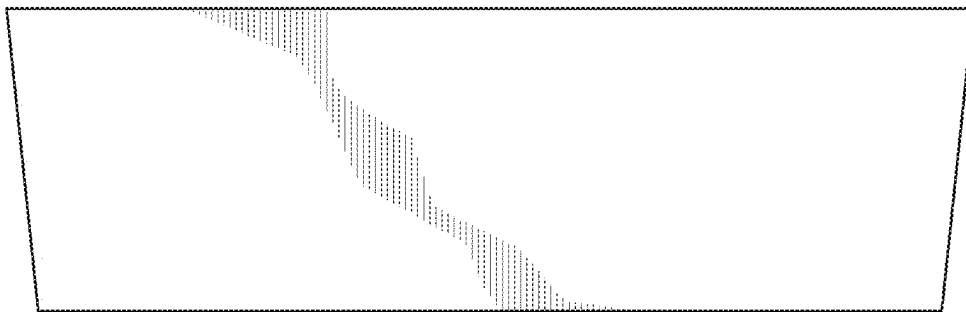


FIG. 8

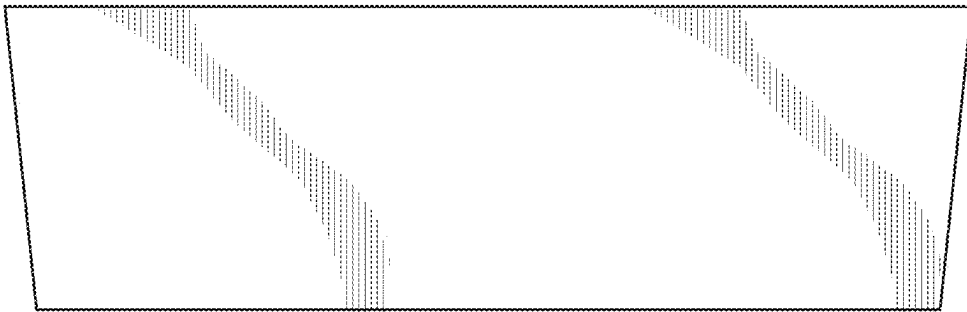


FIG. 9

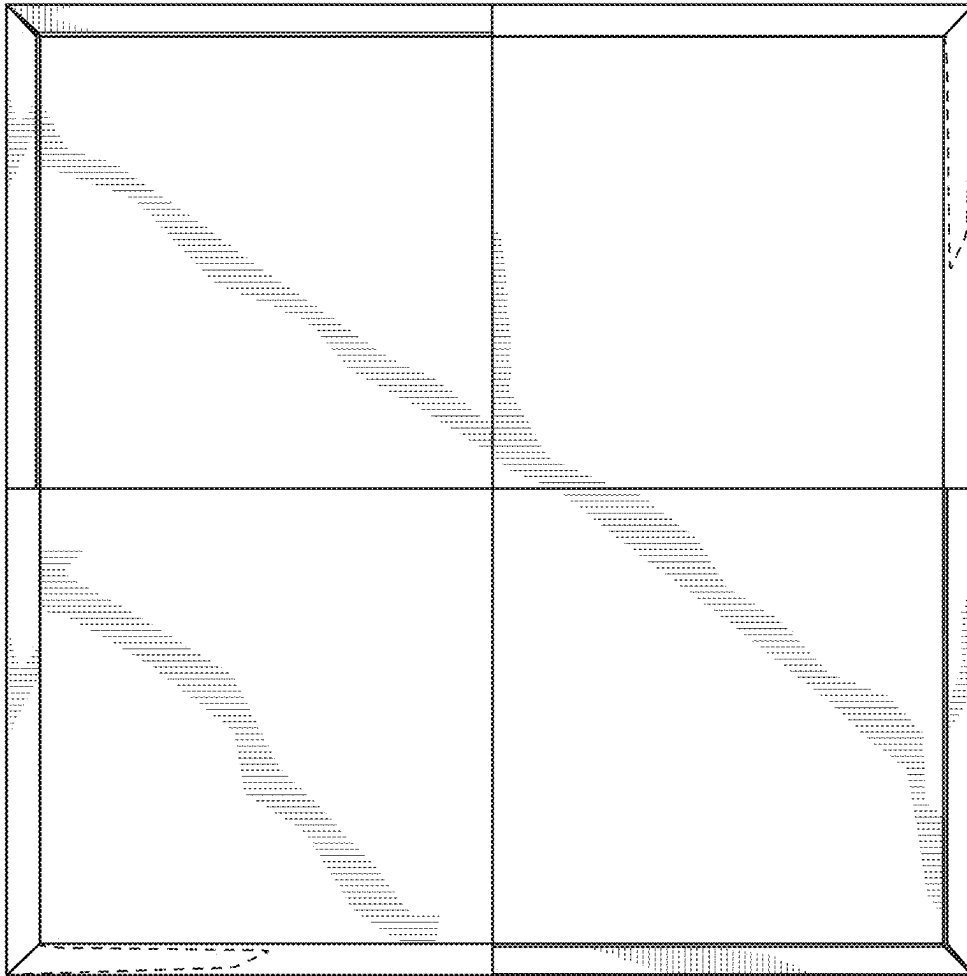


FIG. 10

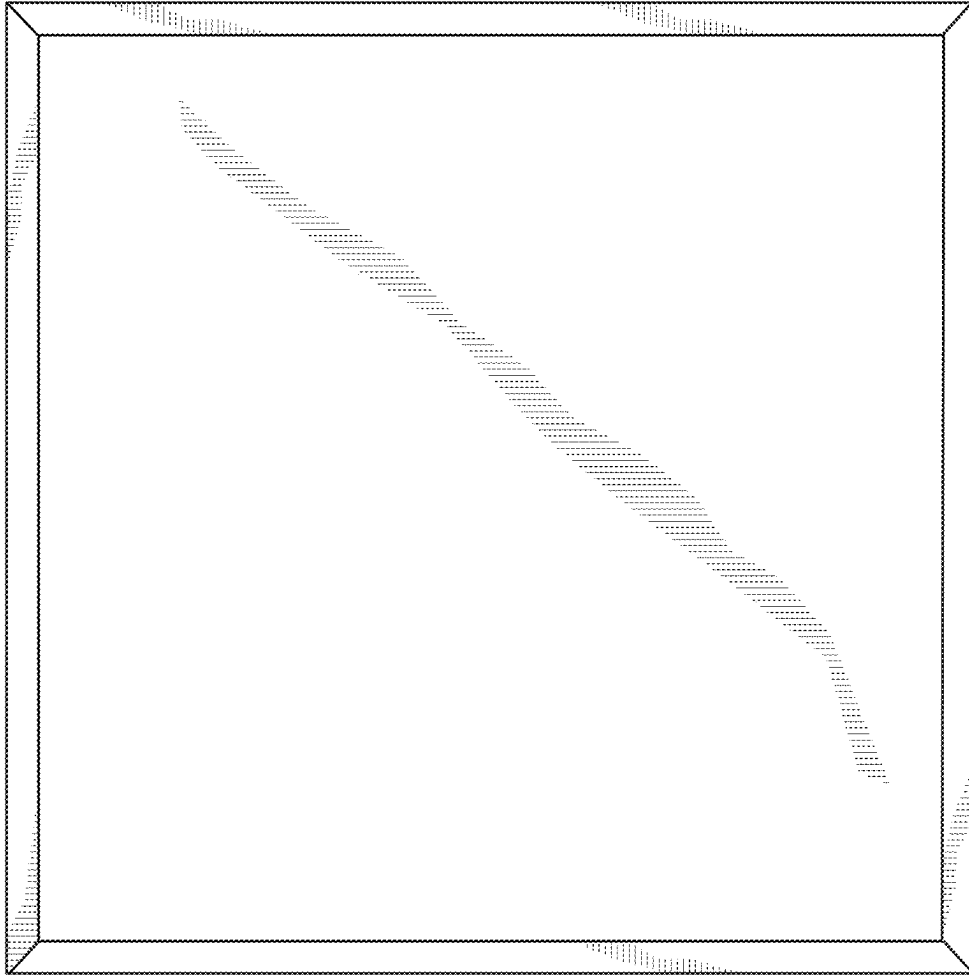


FIG. 11

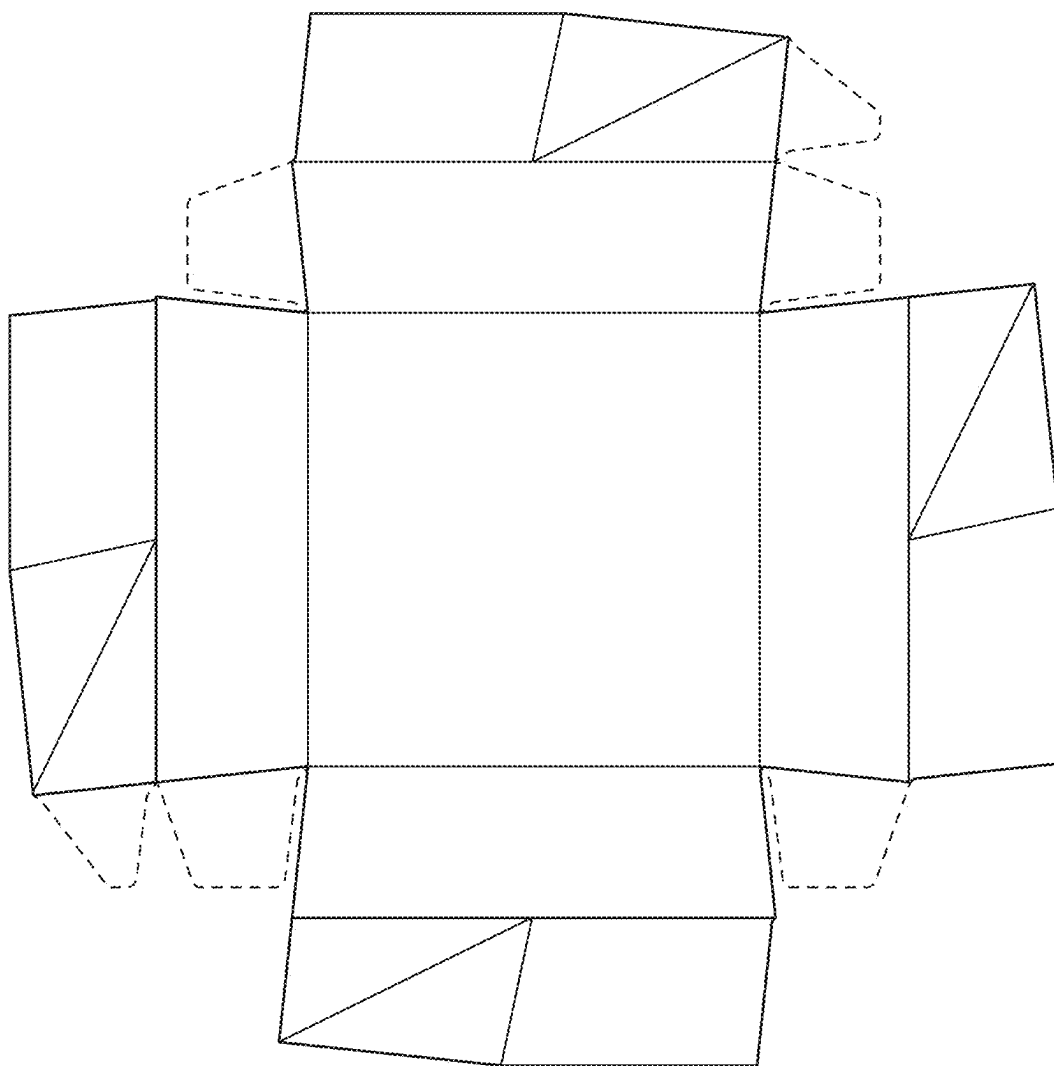


FIG. 12